

HOUSE No. 4073

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fair medical debt reporting and collection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/16/2025</i>

HOUSE No. 4073

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 4073) of David Henry Argosky LeBoeuf relative to medical debt reporting and collection. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fair medical debt reporting and collection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93 of the General Laws is hereby amended by inserting after
2 section 24K the following section:-

3 Section 24L. A consumer who successfully defends themselves against a civil action to
4 collect an alleged debt brought by a creditor, a debt collector or a third party loan servicer shall
5 be entitled to reasonable attorneys' fees and costs.

6 SECTION 2. The second paragraph of section 49 of said chapter 93 of the General Laws,
7 as appearing in the 2022 Official Edition, is hereby amended by adding the following
8 paragraph:-

9 (e) For a medical debt, the creditor: (i) uses an automatic call or robocall; (ii)
10 communicates or implies that medical care will be withheld from the alleged debtor until the
11 medical debt is paid; (iii) fails to advise the alleged debtor of the option to contact an attorney or
12 contact the attorney general; or (iv) violates any other provision of this section.

SECTION 3. Subsection (a) of section 52 of said chapter 93, as amended by section 28 of chapter 150 of the acts of 2024, is hereby further amended by adding the following clause:-

(8) Debt resulting directly from medical treatment.

SECTION 4. Chapter 111 of the General Laws is hereby amended by inserting after section 2J the following section:-

Section 2K. (a) No hospital, acute care hospital, clinic or other health care facility licensed pursuant to this chapter shall deny a person medically necessary health care solely by reason of the person's unpaid medical debt.

(b) A hospital, acute care hospital, clinic or other health care facility licensed pursuant to this chapter shall make publicly available on its website its medical debt collection policies.

SECTION 5. Chapter 112 of the General Laws is hereby amended by inserting after section 1B the following section:-

Section 1C. (a) No health care provider licensed, registered or certified pursuant to this chapter shall deny a person medically necessary health care solely by reason of the person's unpaid medical debt.

(b) A health care provider licensed, registered or certified pursuant to this chapter shall make available to patients their policy on medical debt collection.